> CONSTITUTIONAL

MEASURE NO. 2

SEEKS TO PROVIDE MEALS TO STUDENTS THROUGH A STATE FUNDED SOURCE

- **Placed on the ballot by petition circulated by a sponsoring committee**
- **To be voted on in the Nov. 3, 2026, General Election where a majority vote would result in passage**

A citizen initiated petition effort gathered the needed 31,164 signatures which placed Constitutional Measure No. 2 on the ballot for a vote of the people. The measure seeks to add a new section to article VIII of the North Dakota Constitution related to meals for students at Pre-K–12 grade schools.

This measure seeks to provide one breakfast and one lunch each school day to students without cost to students, parents or guardians. Participating schools would be required to maximize existing federal reimbursement for free and reduced meals. The federal free and reduced meal program requires students to apply and meet income requirements to receive free meals. This measure directs the state to reimburse participating schools from a state funded source for costs not covered by federal funding. It also directs the state to adjust reimbursement rates annually for inflation.

This measure enables the legislative assembly to identify a state funding source to reimburse schools, or directs the legislative assembly to use Legacy Fund earnings if no source is identified.

Who would receive state funded meals:

- **Must Provide Meals** – Public school districts, public schools, and public charter schools
- **Optional Participation** – Private schools, Bureau of Indian Education Schools, and other tribal schools

> WHAT YOUR VOTE MEANS

YES A "YES" vote on Constitutional Measure No. 2 means you support the state of North Dakota funding the ongoing cost of one breakfast and one lunch for all students at participating schools/school districts.

NO A "NO" vote on Constitutional Measure No. 2 means you do not support the state of North Dakota funding breakfast and lunch to students at participating schools beyond the current free and reduced meals program qualifications.

> FISCAL IMPACT

The estimated fiscal impact of this measure is:

- $124 million to $134 million for the cost of free meals to the state beginning in the 2027-2029 biennium (two-year fiscal cycle). This cost would be ongoing to fund the program.
- $300,000 in administrative costs each biennium to the North Dakota Department of Public Instruction.

These costs would be ongoing to fund the program with inflationary increases.

A full fiscal impact statement for this measure can be found at: www.sos.nd.gov/elections/voter/ballot-measures/measures-ballot.

CONSTITUTIONAL MEASURE NO. 2	
YES	Means you support dedicating state funding to provide one breakfast and one lunch each school day to students in participating schools.
NO	Means you do not support the state funding for student meals beyond the current free and reduced meal program.

CONSTITUTIONAL BALLOT MEASURES CHANGE THE NORTH DAKOTA CONSTITUTION

The North Dakota Constitution can only be changed through a statewide ballot measure brought to a vote of the people through one of the following methods:

INITIATED PETITION PROCESS
(MEASURE NO. 2)

Citizens seek ballot access to change the North Dakota Constitution by gathering signatures from 4% of North Dakota qualified voters – a total of 31,164 signatures. If enough qualified signatures are gathered, the petition becomes a ballot measure voted on in the next election.

MAJORITY VOTE OF THE LEGISLATURE
(MEASURE NO.1)

A concurrent resolution to change the North Dakota Constitution can be brought during a legislative session and must have a simple majority vote of the North Dakota Legislature to be placed on the ballot in an upcoming election.

HOW CONSTITUTIONAL MEASURE NO. 2 WILL APPEAR ON THE NOVEMBER 3, GENERAL BALLOT

MEASURES BALLOT

Vote by darkening the oval (●) next to the word "YES" or "NO" following the explanation of each measure

Initiated Constitutional Measure No. 2

This initiated measure amendment would amend and add a new section to article VIII of the North Dakota Constitution. It would mandate all public school districts, public schools, and public charter schools to provide one breakfast and one lunch each school day to enrolled students at no cost to the student, parent, or guardians. It would allow nonpublic schools, Bureau of Indian Education schools, and other tribal schools the option to provide the same. It would require the State of North Dakota to reimburse school districts and schools at one hundred percent of the current rates used by the state for free meals and the rate shall be adjusted annually for inflation. It would require the legislative assembly to identify a source of funds for reimbursement and if a source of funds is unable to be identified, reimbursement funds would be appropriated from the legacy earnings fund. This amendment would supersede any other part of the constitution that conflicts with it.

The estimated fiscal impact of this measure is a $124.3 million to $134.3 million increase in ongoing biennial expenditures for the 2027-2029 biennium and will be adjusted for inflation every year after that.

○ YES - Means you approve the measure summarized above.

○ NO - Means you reject the measure summarized above.

< VIEW FULL TEXT OF MEASURE AT

VOTE.ND.GOV